For Mom — Plain English Guide

Hey — this is the short, no-jargon version to answer your questions.

"Does my checking account / investment account need to be in the will?"

Short answer: No, if you already listed the kids as beneficiaries on those accounts.

Why: Any account with a **beneficiary designation** (sometimes called "payable on death" / POD, or "transfer on death" / TOD) skips the will entirely and goes straight to the named beneficiary. The bank/brokerage just needs a death certificate.

What to do:

1. Call each bank and brokerage and ask: *"Do I have beneficiaries listed on this account?"*
2. If yes → you're set for that account. Ask them to email you a confirmation.
3. If no → ask them to send you the beneficiary designation form. Fill in the two kids, 50/50, send it back. Takes 10 minutes.

The will covers everything else — the house, car, jewelry, cash at home, random stuff, anything you forgot. The will is your catch-all safety net.

"Does the will still need to be done then?"

Yes — 100%. Here's why:

1. It names an **executor** — the person authorized to deal with banks, file taxes, sell the house, etc.
2. It covers **everything without a beneficiary** (your home, car, stuff, anything you forgot to designate)
3. It's a **backup** — if a beneficiary dies before you and you forgot to update the form, the will catches it
4. It prevents **family confusion / arguments** — clear wishes on paper

Without a will, the state decides everything, and probate is way messier.

"Can my friend notarize it?"

If she's officially commissioned as a notary public — yes. A notary's job for a will is:

- Check IDs (yours and the witnesses')
- Watch you sign
- Stamp and sign the notary section

She doesn't need to know anything about wills. If she has her commission and her stamp, she's qualified.

If she's still in the process or you want a pro: Google "mobile notary near me" or "traveling notary." They come to your house.

- Typical cost: **$25–$75** total
- Some will even bring the 2 witnesses with them (ask for a "signing agent" or "will signing service")
- Call ahead and say: "I need notarization for a Last Will and Testament, and I may need witnesses too"

Either way works. The notary is the notary — the document doesn't care who does it as long as they're commissioned.

"Who should be my witnesses?"

Anyone EXCEPT:

- Your kids (they're inheriting — conflict of interest)
- Grandchildren or anyone else inheriting
- Your healthcare agent (for the advance directive)

Good witness options:

- Neighbors
- Coworkers
- Friends who aren't named anywhere in the documents
- The mobile notary can often supply them

You need **2 witnesses** for the will. They just watch you sign and then sign themselves.

"What do I actually need to fill in?"

For the **will** (see `moms-simple-will-DRAFT.md`):

1. Your full legal name
2. Your address (city, county, state)
3. Each kid's full legal name + date of birth
4. What happens if a kid dies before you (Option A = goes to that kid's kids / your grandkids — most common choice)
5. Who's your **executor** (usually the more organized of the two kids, or whoever lives closer) + a backup
6. State you live in

For the **advance directive** (see `moms-DNR-advance-directive-DRAFT.md`):

1. Your info (name, DOB, address)
2. Who's your **healthcare agent** (usually one of the kids) + backup
3. Check the DNR box if that's your wish
4. Check boxes for which treatments you do/don't want (or "agent decides")
5. Organ donation preference

That's really it. Everything else is standard legal language.

"What's the day-of plan?"

Pick a Saturday morning. Do it all at once.

1. Print both documents (filled in)
2. Have **2 witnesses** at your house (not the kids)
3. Have a **notary** at your house (friend or mobile notary)
4. Sign the will:
    - You sign first, in front of everyone
    - Both witnesses sign, watching each other
    - Notary does the self-proving affidavit page
5. Sign the advance directive (same process)
6. Notary stamps everything
7. Done. Whole thing takes about 30 minutes.

Total cost:

- Just the notary: $25–$75
- With an attorney review first (recommended): add $300–$500

"Do I really need a lawyer?"

Honestly? For your situation — two kids, 50/50 split, straightforward — you can probably do it without one. But here's the case for spending the $300–$500:

- They'll make sure the language matches your state's rules exactly
- They provide the witnesses and notary in one visit
- If anything weird comes up after you're gone, the will is harder to challenge
- Peace of mind

Middle ground: Fill out the drafts at home (so you know what you want), then bring them to an attorney for a **1-hour review + signing**. That's often $200–$400 flat. Way cheaper than having them draft from scratch.

The bottom line

You are not being morbid. You are being **responsible**. The hardest part is just sitting down to fill in the names. Everything else — notarizing, witnesses, filing — is easy logistics.

We've got this. Take it one step at a time. ❤️